

1 ENGROSSED SENATE
2 BILL NO. 1775

By: Pederson of the Senate

3 and

4 Dempsey of the House

5
6 An Act relating to municipalities; amending 11 O.S.
7 2021, Section 14-111, which relates to the
8 enforcement and penalties for violation of municipal
9 ordinances; clarifying that penalties for certain
10 municipal ordinances may be equal to penalties in
11 state statute; declaring certain amount of certain
12 fine void and unenforceable in certain circumstance;
13 updating statutory references; updating statutory
14 language; and declaring an emergency.

15 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

16 SECTION 1. AMENDATORY 11 O.S. 2021, Section 14-111, is
17 amended to read as follows:

18 Section 14-111. A. The governing body of a municipality may
19 provide for enforcement of its ordinances and establish fines,
20 penalties, or imprisonment, as authorized by subsections B through D
21 of this section, for any offense in violation of its ordinances,
22 which shall be recoverable together with costs of suit. The
23 governing body may provide that any person fined for violation of a
24 municipal ordinance who is financially able but refuses or neglects
to pay the fine or costs may be compelled to satisfy the amount owed
by working on the streets, alleys, avenues, areas, and public

1 grounds of the municipality, subject to the direction of the street
2 commissioner or other proper officer, at a rate per day as the
3 governing body may prescribe by ordinance, but not less than Fifty
4 Dollars (\$50.00) per day for useful labor, until the fine or costs
5 are satisfied.

6 B. 1. Except for municipal ordinances ~~related to prostitution~~
7 ~~and~~ as otherwise provided in this ~~section~~ subsection, cities having
8 a municipal criminal court of record may enact ordinances
9 prescribing maximum fines of One Thousand Two Hundred Dollars
10 (\$1,200.00) and costs or imprisonment not exceeding six (6) months
11 or both ~~the~~ such fine and imprisonment, but shall not have authority
12 to enact any ordinance making unlawful an act or omission declared
13 by state statute to be punishable as a felony.

14 2. Cities having a municipal criminal court of record may enact
15 ordinances prescribing maximum fines of One Thousand Dollars
16 (\$1,000.00) and costs or imprisonment not exceeding six (6) months
17 or both such fine and imprisonment for violations of municipal
18 ordinances regulating the pretreatment of wastewater and regulating
19 stormwater discharges.

20 3. Cities having a municipal criminal court of record may enact
21 ordinances prescribing maximum fines of One Thousand Two Hundred
22 Fifty Dollars (\$1,250.00) and costs or imprisonment not exceeding
23 six (6) months or both such fine and imprisonment for alcohol-
24 related or drug-related traffic offenses. The court shall remit

1 Fifty Dollars (\$50.00) of each alcohol fine or deferral fee to a
2 fund of the municipality that shall be used to defray costs for
3 enforcement of laws relating to juvenile access to alcohol, other
4 laws relating to alcohol and other intoxicating substances, and
5 traffic-related offenses involving alcohol or other intoxicating
6 substances. The sum of Fifteen Dollars (\$15.00) shall be assessed
7 in every case for violations of municipal ordinances relating to the
8 offense of driving under the influence of alcohol or other
9 intoxicating substance and shall be remitted to the credit of the
10 Oklahoma Impaired Driver Database Revolving Fund created pursuant to
11 Section ~~8~~ 11-902d of ~~this act~~ Title 47 of the Oklahoma Statutes.

12 ~~2.~~ 4. For violations of municipal ordinances relating to
13 prostitution, including, but not limited to, engaging in
14 prostitution or soliciting or procuring prostitution, a municipal
15 criminal court of record may enact ordinances prescribing an
16 imprisonment not to exceed six (6) months, and fines as follows:

17 a. a fine not to exceed Two Thousand Five Hundred Dollars
18 (\$2,500.00) upon the first conviction for violation of
19 any such ordinances,

20 b. a fine ~~of not more than~~ to exceed Five Thousand
21 Dollars (\$5,000.00) upon the second conviction for
22 violation of any of such ordinances, and

23 c. a fine ~~of not more than~~ to exceed Seven Thousand Five
24 Hundred Dollars (\$7,500.00) upon the third or

1 subsequent convictions for violation of any of such
2 ordinances, or both such fine and imprisonment as well
3 as a term of community service ~~of~~ not less than forty
4 (40) nor more than eighty (80) hours.

5 C. 1. Municipalities having a municipal court not of record
6 may enact ordinances prescribing maximum fines pursuant to the
7 provisions of this subsection. A municipal ordinance may not impose
8 a penalty, including fine or deferral fee in lieu of a fine and
9 costs, ~~which~~ that is greater than that established by statute for
10 the same offense.

11 2. The maximum fine or deferral fee in lieu of a fine for any
12 traffic-related offenses relating to speeding or parking, provided
13 that the penalty for such offense is not established by statute,
14 shall not exceed Two Hundred Dollars (\$200.00). For any traffic-
15 related offenses relating to speeding or parking with a penalty
16 established by statute, including fine or deferral fee in lieu of a
17 fine and costs, a municipal ordinance may impose a penalty that is
18 less than or equal to the penalty established by statute for the
19 same offense.

20 3. The maximum fine or deferral fee in lieu of a fine for
21 alcohol-related or drug-related offenses, provided that the penalty
22 for such offense is not established by statute, shall not exceed
23 Eight Hundred Dollars (\$800.00). For all other offenses, the
24 ~~maximum fine or deferral fee in lieu of a fine shall not exceed~~

1 ~~Seven Hundred Fifty Dollars (\$750.00)~~ any alcohol-related or drug-
2 related offenses with a penalty established by statute, including
3 fine or deferral fee in lieu of a fine and costs, a municipal
4 ordinance may impose a penalty that is less than or equal to the
5 penalty established by statute for the same offense. The court
6 shall remit Fifty Dollars (\$50.00) of each alcohol fine or deferral
7 fee to a fund of the municipality that shall be used to defray costs
8 for enforcement of laws relating to juvenile access to alcohol,
9 other laws relating to alcohol and other intoxicating substances,
10 and traffic-related offenses involving alcohol or other intoxicating
11 substances.

12 4. For all other offenses, provided that the penalty for such
13 offenses are not established by statute, the maximum fine or
14 deferral fee in lieu of a fine shall not exceed Seven Hundred Fifty
15 Dollars (\$750.00).

16 5. The ordinances may prescribe costs pursuant to the
17 provisions of Section 27-126 of this title or imprisonment not
18 exceeding sixty (60) days or both ~~the~~ such fine and imprisonment,
19 ~~provided, that municipalities.~~ Municipalities having only a
20 municipal court not of record shall not have authority to enact any
21 ordinance making unlawful any act or omission declared by state
22 statute to be punishable as a felony; ~~provided further, that~~
23 municipalities.

1 6. Municipalities having a municipal court not of record may
2 enact ordinances prescribing maximum fines of One Thousand Dollars
3 (\$1,000.00) and costs or imprisonment not exceeding ninety (90) days
4 or both such fine and imprisonment for violations of municipal
5 ordinances regulating the pretreatment of wastewater and regulating
6 stormwater discharges. If imprisonment is available for the
7 offense, then that person charged shall have a right to a jury
8 trial.

9 D. Municipalities having both municipal criminal courts of
10 record and municipal courts not of record may enact ordinances,
11 within the authority of this section, for each court.

12 E. No municipality may levy a fine or deferral fee in lieu of a
13 fine of over Fifty Dollars (\$50.00) until it has compiled and
14 published its penal ordinances as required in Sections 14-109 and
15 14-110 of this title.

16 F. No municipality may levy a fine of more than Ten Dollars
17 (\$10.00) nor court costs of more than Fifteen Dollars (\$15.00) for
18 exceeding the posted speed limit by no more than ten (10) miles per
19 hour upon any portion of the National System of Interstate and
20 Defense Highways, federal-aid primary highways, ~~and~~ or the state
21 highway system which ~~are~~ is located on the outskirts of any
22 municipality as determined in Section 2-117 of Title 47 of the
23 Oklahoma Statutes.

G. If any fine or deferral fee in lieu of a fine, as stated in a municipal ordinance, or any other fine or fee schedule adopted by a municipality, exceeds the maximum amount authorized by this section or other applicable statutes for the same offense, the amount is void and unenforceable to the extent of the excess amount and shall be deemed reformed and reduced by operation of law to the maximum lawful amount.

SECTION 2. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the Senate the 26th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the ____ day of _____,
2026.

Presiding Officer of the House
of Representatives